



CHAPTER cxiv.

An Act to confirm certain Provisional Orders of the Minister of Health relating to Birkenhead Derby Dunheved otherwise Launceston Great Yarmouth Wakefield and Widnes. A.D. 1920.
[4th August 1920.]

WHEREAS the Minister of Health has made the Provisional Orders set forth in the First Schedule hereto under the provisions of the Public Health Act 1875 and the Provisional Order set forth in the Second Schedule hereto under the provisions of the Public Health Act 1875 and the Local Government Act 1888: 38 & 39 Vict. c. 55. 51 & 52 Vict. c. 41.

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders as altered and set out in the Schedules hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in Schedules confirmed.

2. This Act may be cited as the Ministry of Health Provisional Orders Confirmation (No. 7) Act 1920. Short title.

A.D. 1920.

SCHEDULES.

THE FIRST SCHEDULE.

BOROUGH OF BIRKENHEAD.

*Birkenhead
(Ferries)
Order.*

*Provisional Order for altering the Birkenhead Corporation
Act 1881 the Birkenhead Corporation Act 1897
the Birkenhead Corporation (Ferries) Act 1897 and the
Birkenhead Corporation Act 1914.*

To the Mayor Aldermen and Burgesses of the Borough of
Birkenhead;—

And to all others whom it may concern.

44 & 45 Vict.
c. cliii.
60 & 61 Vict.
c. xcix.
60 & 61 Vict.
c. c.
4 & 5 Geo. 5.
c. lxxxvi.

WHEREAS the Borough of Birkenhead (hereinafter referred to as
“the Borough”) is an Urban Sanitary District of which the Mayor
Aldermen and Burgesses acting by the Council (hereinafter referred
to as “the Corporation”) are the Urban Sanitary Authority and there
are in force in the Borough the unrepealed provisions of the Birken-
head Corporation Act 1881 (hereinafter referred to as “the Act of
1881”) the Birkenhead Corporation Act 1897 (hereinafter referred to
as “the Corporation Act of 1897”) the Birkenhead Corporation (Ferries)
Act 1897 (hereinafter referred to as “the Ferries Act of 1897”) and
the Birkenhead Corporation Act 1914 (hereinafter referred to as “the
Act of 1914”) (all of which Acts are hereinafter together referred to
as “the Local Acts”) as altered by certain other Local Acts and
certain Provisional Orders duly confirmed by Parliament which do not
affect the subject-matter of this Order;

And whereas the Corporation own maintain and work certain
ferries across the River Mersey;

And whereas by Section 257 of the Act of 1881 the Corporation
were empowered to borrow for ferry purposes sums not exceeding
forty thousand pounds and in addition thereto the Corporation were
by Section 17 of the Ferries Act of 1897 empowered to borrow for
the ferry purposes of the Ferries Act of 1897 any sum not exceeding
thirty-eight thousand pounds;

And whereas by virtue of Section 211 of the Act of 1881 Section 6
of the Ferries Act of 1897 and Section 20 of the Corporation Act of
1897 the Corporation are prevented from demanding or taking a greater

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ferry toll or make any greater charges for ferryage than the amount specified in Schedule E to the Act of 1881 annexed; A.D. 1920.

*Birkenhead
(Ferries)
Order.*

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order to alter or amend the Local Acts in the manner hereinafter set forth:

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Local Acts shall be altered so that the following provisions shall take effect namely:— 38 & 39 Vict. c. 55.

Art. I.—(1) The Corporation may borrow at interest such sums not exceeding in the whole the sum of one hundred and fifty thousand pounds and with the sanction of the Minister of Health such additional sums as may from time to time be required for the purposes of their ferry undertaking in addition to any moneys which they are authorised to borrow under the Act of 1881 and the Ferries Act of 1897. Additional borrowing powers for ferry purposes.

(2) The moneys borrowed under subdivision (1) of this Article shall be repaid within twenty years from the date of borrowing except as to moneys borrowed with the sanction of the Minister of Health which shall be repaid within such period as the Corporation with the sanction of the said Minister determine.

(3) The sums required for payment of interest on or for or towards repayment of moneys borrowed on mortgage under this Order shall be payable out of the revenue of the ferry undertaking and if and so far as that revenue proves insufficient the borough fund and borough rate or out of the interest rate as the case may be.

(4) The provisions of Sections 12 14 16 and 17 of the Act of 1914 shall apply to moneys borrowed under this Order as if they were in terms re-enacted herein and expressly made applicable to those moneys.

Art. II. Notwithstanding anything contained in the Act of 1881 and the Ferries Act of 1897 the Corporation may from time to time demand and take ferry tolls and charges for ferryage not exceeding those set forth in the Schedule to this Order: Increase of ferry tolls and charges for ferryage.

Provided that no such tolls and charges other than or exceeding those at present authorised shall be demanded or taken without the approval of the Minister of Transport.

Art. III. This Order may be cited as the Birkenhead (Ferries) Order 1920. Short title.

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Birkenhead
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Order.

SCHEDULE.

FERRY TOLLS.

For carrying each person who shall not be a contractor or ticket holder as after mentioned from the slips quays or landing stages of the mayor aldermen and burgesses of the Borough of Birkenhead across the River Mersey to the landing-stage or place appropriated to ferry steamers belonging to the Mersey Docks and Harbour Board or vice versa by the boats of the Corporation (between the hours of five o'clock in the morning and twelve o'clock at night) a sum not exceeding 3d.

For carrying as aforesaid any such person at and after the hour of twelve o'clock at night and before the hour of five o'clock in the morning a sum not exceeding 9d.

	For One Year.	For Six Calendar Months.	For Three Calendar Months.
	£ s. d.	£ s. d.	£ s. d.
For carrying as aforesaid one person who shall contract with the Corporation by payment in advance from such date as the Corporation may fix excepting at and after the hour of 12 o'clock at night and before the hour of 5 o'clock in the morning not exceeding	3 7 6	2 5 0	1 10 0

CONVEYANCE OF HORSE VEHICLES &C.

	Maximum.
	s. d.
Cart (two wheels)	4 0
Cab or hansom	2 6
Carriage or phaeton	3 0
Float (small)	3 0
„ (large)	4 6
Handcart under 4 feet 6 inches	1 0
„ over 4 feet 6 inches	2 0
Hearse	10 0
Lorry or waggon	4 6
„ exceeding 18 feet	6 0
Brougham or mourning coach	4 6
Oil tank wagon	5 0
Trap	2 6
Truck (hand) small	0 6
„ (large)	1 0

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							Maximum.	A.D. 1920.
							s. d.	
Van—								<i>Birkenhead</i>
Furniture	...	...	...	...	...	...	6 0	<i>(Ferries)</i>
Parcels delivery (two wheels)	...	...	...	...	...	...	4 0	<i>Order.</i>
" " (four ")	...	...	...	...	...	...	4 6	
Undertakers	...	...	...	...	...	...	4 0	
Wagonette or omnibus—								
One horse	...	...	...	...	...	...	5 0	
Two horses	...	...	...	...	...	...	7 6	
Three horses	...	...	...	...	...	...	10 0	
Four horses	...	...	...	...	...	...	15 0	
Wheelbarrow	...	...	...	...	...	...	1 0	

The above rates to include the conveyance of one-horse vehicles except wagonettes or omnibuses. If extra horses are used an additional rate of 9d. per horse to be payable.

CONVEYANCE OF MOTOR OR STEAM VEHICLES.

							Maximum.	
							s. d.	
Motor vehicles—								
Ambulance	...	...	...	...	...	...	5 0	
Bicycle and trader's side-car	...	...	...	...	...	...	1 0	
Car or chassis not exceeding 11 feet	...	...	...	...	...	...	2 6	
" " " 14 "	...	...	...	...	...	...	3 0	
" exceeding 14 feet	...	...	...	...	...	...	4 0	
" three wheels two seats	...	...	...	...	...	...	2 0	
Cars by passenger steamers when goods boats are not running	...	...	...	...	...	...	20 0	
Omnibus (small) hotel or railway	...	...	...	...	...	...	6 0	
Charabanc or omnibus	...	...	...	...	...	...	10 0	
Delivery van up to 15 cwt.	...	...	...	...	...	...	3 0	
" " " 25 "	...	...	...	...	...	...	4 0	
" " over 25 "	...	...	...	...	...	...	6 0	
Lorry or wagon	...	...	...	...	...	...	10 0	
" with trailer	...	...	...	...	...	...	15 0	
Hearse	...	...	...	...	...	...	10 0	
Taxi-cab	...	...	...	...	...	...	2 6	
Tractor engine	...	...	...	...	...	...	10 0	
Oil tank wagon	...	...	...	...	...	...	4 6	
Furniture van	...	...	...	...	...	...	10 0	
Steam vehicles—								
Tractor engine	...	...	...	...	...	...	10 0	
" " and crane	...	...	...	...	...	...	15 0	
Roller	...	...	...	...	...	...	10 0	

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Birkenhead
(Ferries)
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CONVEYANCE OF LIVE STOCK.

Maximum.

s. d.

Cattle per head	...	...	...	...	...	...	...	1	0
Calves	..	...	...	...	...	...	...	0	6
Dog	...	...	...	...	...	...	...	0	3
Horse or donkey	...	...	...	...	...	...	...	0	9
Sheep or pig (dead or alive)	...	...	...	...	...	...	...	0	3
per 100	...	...	...	...	...	...	...	20	0

CONVEYANCE OF LIGHT GOODS AND PARCEL TRAFFIC
(AT OWNER'S RISK).

s. d.

Weight not exceeding 14 lbs	...	...	...	0	4	} and 3d. for each additional 28 lbs.
" " 28	...	...	...	0	6	
" " 56	...	...	...	0	8	
" " 84	...	...	...	0	10	
" " 112	...	...	...	1	0	

Articles not particularly enumerated hereon as per special arrangement.

The tolls above mentioned for the conveyance of vehicles or animals to include the fare for the driver or drover.

An additional charge for overhanging loads on the following scale :—

s. d.

5 feet and under 10 feet	...	...	...	0	6
10 " " 15 "	...	...	...	0	9
15 " " 20 "	...	...	...	1	0
Over 20	...	...	...	2	0

Double tolls on bicycles hand-carts parcels &c. carried by the night boats between the hours of twelve o'clock at night and five o'clock in the morning inclusive (except for motor cars—see special rate).

When the Woodside goods steamers are running on Sundays holidays &c. special charges.

Given under the Official Seal of the Minister of Health this
Nineteenth day of May One thousand nine hundred and
twenty.

(L.S.)

F. J. WILLIS

Assistant Secretary Ministry of Health.

BOROUGH OF DERBY.

A.D. 1920.

*Provisional Order for partially repealing and altering the
Derby Corporation Act 1901.*

Derby Order.

To the Mayor Aldermen and Burgesses of the Borough of
Derby; —

And to all others whom it may concern.

WHEREAS the Borough of Derby (hereinafter referred to as "the Borough") is an Urban Sanitary District of which the Mayor Aldermen and Burgesses acting by the council (hereinafter referred to as "the Corporation") are the Urban Sanitary Authority and the unrepealed provisions of the Derby Corporation Act 1901 (hereinafter referred to as "the Local Act") as altered by another Local Act which does not affect the subject-matter of this Order are in force in the Borough;

1 Edw. 7.
c. cclxvii.

And whereas by Section 105 of the Local Act the Corporation were authorised to appropriate and utilise for the treatment and disposal of sewage the lands described in the Fifth Schedule to the Local Act and to construct and lay down on such lands the buildings engines and works therein referred to and by subsection (2) of Section 109 of the Local Act it was provided that the Corporation should within six months after they had acquired under the provisions of the Local Act the said lands reserve out of the same a strip of land ten yards in width along the northern boundary of such lands and should forthwith plant the said strip with trees and evergreen shrubs so as to form an effectual screen in front of the rest of the lands and for ever afterwards maintain the same so planted;

And whereas the Agreement (hereinafter referred to as "the Scheduled Agreement") set forth in the Schedule annexed to this Order made between the Corporation and the British Cellulose and Chemical Manufacturing Company Limited (hereinafter referred to as "the Company") provides for the granting of a lease by the Corporation to the Company of the land described in Clause 1 of the Scheduled Agreement being a part of the strip of land referred to in subsection (2) of Section 109 of the Local Act as forming part of the lands described in the Fifth Schedule thereto such lease to contain the covenants and provisions in the Scheduled Agreement set forth one of such covenants requiring the Company to provide for the planting by them of certain other lands described in paragraph (d) of Clause 2 of the Scheduled Agreement with trees and evergreen shrubs;

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A.D. 1920. And whereas the Corporation have made application to the Minister
Derby Order. of Health for the issue of a Provisional Order to alter or amend the
Local Act in the manner hereinafter set forth :

38 & 39 Vict. Now therefore the Minister of Health in pursuance of the powers
c. 55. given to him by Section 303 of the Public Health Act 1875 and of
all other powers enabling him in that behalf hereby orders that from
and after the date of the Act of Parliament confirming this Order
(hereinafter referred to as "the commencement of this Order") the
Local Act shall be partially repealed and altered so that the following
provisions shall take effect that is to say :—

Confirmation
of Scheduled
Agreement. Art. I. The Scheduled Agreement is hereby confirmed and made
binding upon the parties thereto.

Amendment
of local Act. Art. II.—(1) Subsection (2) of Section 109 of the local Act is
hereby repealed.

(2) The Corporation shall forthwith plant or cause to be planted
with trees and evergreen shrubs such of the following lands as have
not already been so planted namely :—

(a) The lands coloured light green and dark green on the plan
annexed to the Scheduled Agreement referred to in para-
graph (d) of the Covenants by the Company in clause 2 of
the Scheduled Agreement ;

(b) A strip ten yards in width of the land belonging to the Cor-
poration now planted with such trees and shrubs situate on
the southerly side of the road known as Megaloughton Lane ;

and the Corporation shall at all times maintain such lands so planted :

Provided that notwithstanding anything herein contained the Cor-
poration shall be at liberty to make maintain and use railway sidings
and roads across the said lands.

The rural district council of Shardlow may take such proceedings
as they think fit for the purpose of enforcing or giving effect to the
provisions of this subdivision.

Short title. Art. III. This Order may be cited as the Derby Order 1920.

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The SCHEDULE above referred to.

A.D. 1920.

Derby Order.

AN AGREEMENT made the Eighteenth day of October One thousand nine hundred and nineteen BETWEEN THE MAYOR ALDERMEN AND BURGESSES OF THE BOROUGH OF DERBY (hereinafter called "the Corporation" which expression shall where the context so admits include their successors and assigns) of the one part and THE BRITISH CELLULOSE AND CHEMICAL MANUFACTURING COMPANY LIMITED whose Registered Office is situate at Number 8 Waterloo Place in the City of Westminster (hereinafter called "the Company" which expression shall where the context so admits include their successors and permitted assigns) of the other part WHEREBY IT IS MUTUALLY AGREED by and between the parties hereto as follows that is to say:—

1. The Corporation shall grant and the Company shall accept a lease of all that piece of land situate in the County Borough of Derby containing by admeasurement four thousand four hundred and sixty-eight square yards or thereabouts and delineated on the plan annexed hereto and thereon edged with a blue line together with the right for the Company to construct and maintain sidings across the occupation road known as Holme Lane leading to other lands belonging to the Corporation such sidings consisting of a single or double line of railway constructed in the positions shown upon the said plan or such other positions as may be approved by the Corporation except and reserving to the Corporation their agents servants and workmen and any persons authorised by the Corporation liberty at all times to construct and lay any sewer drain water main pipe electricity main wire or cable or any culvert for the conveyance or passage of water underneath the said land demised and under any sidings or level crossings across the said Holme Lane but so that the right reserved to the Corporation shall not be exercised in such a way as to prevent (except if necessary temporarily) the use of any sidings constructed by the Company upon the land demised or across the said Holme Lane and that the Corporation shall make good any damage done to such sidings the said demise to be for the term of ninety-nine years from the first day of January One thousand nine hundred and twenty determinable as hereinafter provided at the yearly rent of one pound clear of all deductions whatsoever (except Landlord's Property Tax) payable on the First day of January in every year the first payment to be made on the First day of January One thousand nine hundred and twenty-one.

2. Such lease shall contain the following covenants and provisions:—

COVENANTS BY THE COMPANY.

(a) To pay the rent as aforesaid;

(b) To pay and discharge all existing and future rates taxes assessments duties impositions and outgoings whatsoever

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assessed charged or imposed upon the demised premises or upon the owners or occupiers in respect thereof other than upon any sewer pipe wire cable or culvert constructed or laid by the Corporation under the reservation hereinbefore contained ;

(c) To use the land demised for the purpose of constructing and maintaining thereon railway sidings connecting the works of the Company and lands of the Corporation with the Midland Railway and not to use such land for any other purpose whatever ;

(d) Forthwith upon the confirmation of the Provisional Order hereinafter mentioned to remove the fence shown by the letters "C" and "D" marked upon the said plan and to re-erect the same in the line shown by the letters "E" and "F" also marked upon the said plan and to plant with trees and evergreen shrubs the whole of the land coloured light green on the said plan and also the land coloured dark green on such plan adjacent to the land coloured yellow thereon so as to form an effectual screen in front of the other lands of the Corporation on the southerly side of the lands to be so planted ;

(e) If and when required by the Corporation (and to the extent and in such manner as the Corporation may from time to time specify) (1) To fence off the said land demised from the adjoining lands of the Corporation (2) To construct level road crossings where the before-mentioned sidings will cross the before-mentioned occupation road known as Holme Lane such level crossings to be of the full width of the said occupation road and if such occupation road shall hereafter be widened to extend such level crossings the full width of the widened road (3) To provide gates at such level crossings and at all times to maintain such fences crossings and gates in good and substantial repair and condition ;

(f) Not to damage or injure or permit to be damaged or injured any sewer drain water main pipe electricity main wire or cable or other works of the Corporation now or hereafter in or under the said occupation road and to carry out such works for the protection of the same as the surveyor for the time being of the Corporation may deem necessary ;

(g) Not to cause or permit the said sidings where they cross the said occupation road to be used except as running lines only nor at any time to cause or permit any engine truck wagon

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carriage or van loaded or otherwise to be shunted or to stand or remain on the same; A.D. 1920.
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- (h) Not to cause or permit the said sidings to be used at any time in any manner so as unnecessarily to obstruct or interfere with the use of the level road crossings herein provided for or with the use of the before-mentioned occupation road either as now existing or as the same may hereafter be widened or in any manner which may cause any unnecessary damage or detriment to property of the Corporation;
- (i) Forthwith upon the confirmation of the said Provisional Order to lay out construct and complete an ashed road between Holme Lane aforesaid and the occupation road known as "Megaloughton Lane" in the position shown by the colour brown on the said plan;
- (j) Forthwith upon the confirmation of the said Provisional Order entirely to remove and clear away the sidings shown by the colour dark green on the said plan;
- (k) Forthwith upon the confirmation of the said Provisional Order to construct so far as the same are not already constructed sidings in the positions shown by the colour pink on the said plan;
- (l) At all times during the continuance of the said demise to maintain in good and substantial repair and condition and in good working order the whole of the sidings shown upon the said plan (other than the said sidings shown by the colour green on the said plan) and from time to time to supply the necessary engine power and work such traffic as the Corporation or the proper officer of the Corporation may from time to time require the Company to work from and to the railway of the Midland Railway Company over the sidings shown upon the said plan (other than the said sidings shown by the colour green on the said plan) to and from the portion of the said sidings between the points marked "A" and "B" on the said plan and from time to time to enter into any necessary agreement with the railway company for the use of the said sidings shown upon the said plan (other than the said sidings shown by the colour green on the said plan) and to pay when and as they shall become due all rates tolls terminals and other charges payable to the railway company in respect of all traffic to from or over such sidings (other than such as may be payable by the Corporation) and to

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comply with any regulations for the time being of the railway company which relate to or affect the use of the said sidings such traffic which the Corporation shall require the Company to work to be delivered to or removed from (as the case may be) the said portion of sidings between the points marked "A" and "B" on the said plan from or to the railway of the Midland Railway Company with all possible despatch and to be given priority over all other traffic on and over the sidings shown on the said plan Provided that the obligation of the Company to work traffic required by the Corporation shall be limited to an average in each week of four trucks a day each way and to one journey each way daily And provided further that if and so long as by any unavoidable cause the working of the traffic over the said sidings which the Company may be required for the time being by the Corporation or the proper officer of the Corporation to work shall be stopped or interrupted the Company shall be at liberty to deliver or remove such traffic by the most expeditious means practicable to or from the before mentioned portion of sidings between the points marked "A" and "B" on the said plan from or to the railway of the Midland Railway Company as the case may be or to or from any point or points not being more than four hundred yards from the before-mentioned portion of sidings as the Corporation or the proper officer of the Corporation may from time to time require;

(m) For every failure of the Company to fulfil their obligations under the last preceding clause the Company to indemnify the Corporation against any charges for demurrage or other losses costs or charges the Corporation may sustain or incur in consequence thereof and in addition to pay to the Corporation the sum of two pounds per day in respect of each truck for so long a time as any delay in working the traffic shall continue;

(n) To construct carry out provide and maintain to the reasonable satisfaction of the surveyor or engineer for the time being of the Corporation all the works which the Company are required to construct carry out provide and maintain under the provisions of the lease;

(o) Not to assign underlet or part with the possession of the premises demised or any part thereof or permit or suffer the same to become vested in any other person or persons firm or company whomsoever without the consent in writing

of the Corporation first obtained which consent shall not however be unreasonably withheld in the case of a respectable and responsible tenant: A.D. 1920.
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COVENANTS BY THE CORPORATION.

- (a) That the Company paying the rent reserved and observing and performing the covenants and conditions in the Lease contained shall and may peaceably hold and enjoy the premises demised for the term granted without any lawful interruption by the Corporation or any person rightfully claiming under or in trust for them;
- (b) To pay to the Company for working the traffic of the Corporation over the sidings the same terminal rates that would for the time being have been payable by the Corporation to the Midland Railway Company if such traffic had been worked by the Railway Company over an independent siding belonging to the Corporation connecting the Corporation's land with the Midland Railway:

PROVISOES.

- (a) That if the rent reserved or any part thereof shall be in arrear for the space of twenty-one days next after the same shall have become due after payment having been demanded in writing or if the Company shall at any time fail or neglect to perform or observe any of the covenants and conditions in the Lease contained and on their part to be performed or observed or if the Company shall become bankrupt or insolvent or shall compound with their creditors or propose any composition to their creditors in settlement of their debts or shall carry on or propose to carry on their business under inspectors on behalf of their creditors or shall suffer a Receiver to be appointed of any of their assets or property or go into liquidation whether compulsory or voluntary (not being merely a voluntary liquidation for the purpose of reconstruction) or shall commit any act of bankruptcy or if the said sidings shown upon the said plan shall for a period of not less than six consecutive months cease to be used for the purposes of the existing works of the Company then and in any such case it shall be lawful for the Corporation or any person or persons duly authorised by them in that behalf to re-enter upon the premises demised or any part thereof in the name of the whole and peaceably to hold and enjoy the said premises thenceforth as if the Lease had not been made and

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thereupon the demise shall cease and determine but without prejudice to any right of action or remedy of the Corporation in respect of any antecedent breach of any of the covenants by the Company or the conditions in the Lease contained ;

(b) The Corporation shall be at liberty to extend the said sidings from the point marked "A" on the said plan in such manner as they may think fit and to use such extended sidings for any purpose and in such manner as they may desire ;

(c) In the event of the Company no longer requiring the said sidings shown on the said plan for the purposes of their works it shall be lawful for the Company to determine the demise at any time during the said term on giving to the Corporation six calendar months' previous notice in writing Provided that the Company shall up to the time of such determination have paid the rent reserved and observed and performed the covenants on their part and the conditions in the Lease contained and immediately on the expiration of such six calendar months the demise and everything therein contained shall cease and be void but without prejudice to any right of action or remedy of the Corporation in respect of any antecedent breach of any of the covenants by the Company or the conditions in the lease contained ;

(d) Upon the determination of the said demise by the Company or the Corporation under the provisions thereof the Corporation shall be entitled to purchase any portion or portions of any siding or sidings on the land demised which they may desire to purchase at a price agreed upon between the parties or settled in default of agreement by arbitration ;

(e) All notices to be given under the said demise shall in the case of the Corporation be sufficient if under the hand of the Mayor or Town Clerk for the time being of the said Borough and shall be well and sufficiently served given or delivered if sent by prepaid post addressed to the Company at their registered office for the time being or at their last known registered office or at their works at Spondon in the County Borough of Derby and any such posted notice shall be deemed to have been received by the Company on the day following the day on which the same was posted.

3. The Corporation shall sell and the Company shall purchase at the price of two hundred and fifty pounds per acre and so in proportion for any greater or less quantity than an acre the fee simple of

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all that piece of land situate at Spōndon in the County Borough of Derby containing two thousand five hundred square yards or thereabouts and more particularly delineated on the said plan annexed hereto and thereon coloured yellow upon the condition following that is to say :—

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- (a) The Corporation shall deduce title to the said land such title to commence with an Indenture dated the Twenty-fourth day of June One thousand nine hundred and three and made between Oliver Morgan Lilly of the one part and the Mayor Aldermen and Burgesses of the Borough of Derby of the other part No title shall be shown to the occupation road known as Holme Lane or to the right to grant the right of using the same;
- (b) The property shall be sold subject to all tenancies tenant rights chief and other rents land tax tithe commutations rights of way water light and other easements (if any) affecting the same and to any subsisting liability under enclosure award or otherwise to repair fences or roads;
- (c) The deposit shall be at the rate of Ten pounds per centum upon the purchase money and the purchase shall be completed at the expiration of two months from the date of the confirmation of the Provisional Order hereinafter referred to at the office of the Town Clerk of Derby the Vendor's solicitor;
- (d) The Abstract of Title shall be delivered or sent by post to the Company or their solicitors within fourteen days from the date of the confirmation of the said Provisional Order;
- (e) Objections to and requisitions on the title shall be sent to the Vendor's solicitor within ten days from the delivery of the abstract whether the same shall have been delivered within the time specified by the last preceding condition or not and all further objections and requisitions arising out of the replies to any former requisitions shall be sent within five days from the delivery of such replies to the Company or their solicitors;
- (f) The draft assurance shall be sent to the solicitor to the Corporation fourteen days and the engrossment thereof three days before the day named for completion;
- (g) The Company shall in the Conveyance to them of the land agreed to be sold covenant with the Corporation within three months from the date of the Conveyance to erect

[Ch. cxiv.] *Ministry of Health Provisional [10 & 11 GEO. 5.]
Orders Confirmation (No. 7) Act, 1920.*

A.D. 1920.

Derby Order.

and at all times thereafter to maintain in good and substantial repair and condition to the reasonable satisfaction of the surveyor for the time being of the Corporation fences dividing the land sold from the adjoining lands of the Corporation ;

- (h) The Company shall pay to the Corporation interest on the purchase money at the rate of Five pounds per centum per annum from the First day of July One thousand nine hundred and eighteen until completion of the purchase ;
- (i) The Company shall on the completion of the purchase execute and deliver to the Corporation a duplicate of the conveyance such duplicate to be prepared and perfected in all respects at the expense of the Company who shall at their own expense produce the principal conveyance for the purpose of having such duplicate properly stamped ;
- (j) The Common Form Conditions of Sale of the Derby Law Society of which a print is hereto annexed so far as applicable shall apply to the sale and if there should be any inconsistency between the Special Conditions hereinbefore contained and the Common Form Conditions the former shall prevail.

4. The Corporation shall at the expense in all things of the Company apply for a Provisional Order amending Local Acts in order to enable the provisions of this Agreement to be carried into effect and the Company shall forthwith on demand pay to the Corporation all expenses incurred by them in connection with the application for the Provisional Order and the obtaining of the confirmation thereof.

5. Pending the execution of the lease as hereinbefore mentioned this Agreement shall not be deemed in any way to operate as a demise of the lands shown on the said plan annexed hereto and thereon edged with a blue line.

6. This Agreement is subject to the before mentioned Provisional Order being obtained and confirmed and if such order shall not be made and confirmed within twelve months of the date hereof this Agreement shall at the expiration of such period become absolutely void and neither party shall have any claim upon the other for costs charges damages or expenses or in any way relating thereto save that the Company shall indemnify the Corporation against any costs charges or expenses in any way incurred in connection with the application for the said Provisional Order or the obtaining of the confirmation thereof and shall pay to the Corporation interest on the purchase price of the land as hereinbefore provided up to the expiration of the said twelve months.

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxiv.]
Orders Confirmation (No. 7) Act, 1920.

IN WITNESS whereof the Corporation and the Company have caused A.D. 1920.
their respective Common Seals to be hereunto affixed the day and year *Derby Order*.
first before written

Sealed with the Common Seal of the before-
named Mayor Aldermen and Burgesses of
the Borough of Derby by the order and
direction of the Council of the said
Borough in the presence of



(Signed) G. TREVELYAN LEE
Town Clerk.

The Common Seal of the before-named
British Cellulose and Chemical Manufac-
turing Company Limited was hereunto
affixed in the presence of



(Signed) EDWARD ROBSON }
(Signed) CAMILLE DREYFUS } *Directors.*
(Signed) A. E. STROWELL
Secretary.

Given under the Official Seal of the Minister of Health this
Eighteenth day of May One thousand nine hundred and
twenty.

(L.S.)

F. J. WILLIS
Assistant Secretary Ministry of Health.

BOROUGH OF GREAT YARMOUTH.

*Provisional Order for altering the Great Yarmouth
Corporation Act 1904.*

*Great
Yarmouth
Order.*

To the Mayor Aldermen and Burgesses of the Borough of Great
Yarmouth : —

And to all others whom it may concern.

WHEREAS the Borough of Great Yarmouth (hereinafter referred to
as "the Borough") is an Urban Sanitary District of which the Mayor
Aldermen and Burgesses acting by the Council (hereinafter referred
to as "the Corporation") are the Urban Sanitary Authority and the
unrepealed provisions of the Great Yarmouth Corporation Act 1904

[Ch. cxiv.] *Ministry of Health Provisional* [10 & 11 GEO. 5.]
Orders Confirmation (No. 7) Act, 1920.

A.D. 1920. (hereinafter referred to as "the Local Act") are in force in the
Borough ;

*Great
Yarmouth
Order.*

And whereas Section 16 of the Local Act authorises the Corporation to provide maintain work and run omnibuses (whether moved by animal or by mechanical power) within the Borough in connexion with their tramways when the running of carriages thereon is impracticable or pending the construction reconstruction alteration or repair thereof and without the Borough along the route of Tramway No. 3 authorised by the Local Act ;

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order to alter or amend the Local Act in the manner hereinafter set forth :

38 & 39 Vict.
c. 55. Now therefore the Minister of Health in the exercise of the powers given to him by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall have effect that is to say :—

*Extension of
routes for
motor omni-
buses.*

Art. I. Section 16 of the Local Act shall have effect as if in paragraph (a) of sub-section (1) thereof the word "generally" had been inserted therein instead of all the words following the word "borough" and as if paragraph (b) of that subsection were altered by the addition thereto of the words "and with the consent of the local and road authority from the termination of that tramway route for a further distance of five furlongs and five chains along the Caister Road ending at the Caister Cemetery."

Short title,

Art. II. This Order may be cited as the Great Yarmouth Order 1920.

Given under the Official Seal of the Minister of Health this
Nineteenth day of May One thousand nine hundred and
twenty.

(L.S.)

F. J. WILLIS
Assistant Secretary Ministry of Health.

CITY OF WAKEFIELD.

A.D. 1920.

*Provisional Order for partially repealing altering and
amending the Wakefield Corporation Waterworks
Act 1880 the Wakefield Corporation Act 1889
and the Wakefield Corporation Act 1916.*

*Wakefield
Order.*

To the Lord Mayor Aldermen and Citizens of the City of
Wakefield;—

And to all others whom it may concern.

WHEREAS the City of Wakefield (hereinafter referred to as “the
City”) is an Urban Sanitary District of which the Lord Mayor
Aldermen and Citizens acting by the Council (hereinafter referred to
as “the Corporation”) are the Urban Sanitary Authority;

And whereas the unrepealed provisions of the Wakefield Corpora-
tion Waterworks Act 1880 the Wakefield Corporation Act 1889 and
the Wakefield Corporation Act 1916 (each of which Acts is hereinafter
separately referred to as the Act of the year in which it was passed
and all which Acts are hereinafter together referred to as “the Local
Acts”) are in force in the City;

43 & 44 Vict.
c. lvii.
52 & 53 Vict.
c. lxxviii.
6 & 7 Geo. 5.
c. xx.

And whereas by the Local Acts the Corporation were authorised
to make and maintain waterworks and to acquire certain lands for
the purposes of and in connection with the same;

And whereas by Section 32 of the Act of 1916 the Corporation
were empowered by agreement to acquire additional lands for the
purposes of their water undertaking;

And whereas Section 22 of the Act of 1880 Section 14 of the
Act of 1889 and Section 9 of the Act of 1916 contained certain
provisions for the protection of certain estates which included the
lands in the Township of Rishworth to be acquired by the Corporation
in manner hereinafter mentioned;

And whereas it is expedient that for the purpose of protecting
their waters and waterworks against pollution fouling contamination
and injury and for other purposes of their water undertaking the
Corporation should be empowered to acquire lands in the vicinity of
the said waters and waterworks in addition to the land authorised to
be acquired under Section 32 of the Act of 1916;

And whereas by Section 46 of the Act of 1916 the Corporation
were empowered to borrow with the consent of the Local Government
Board such further money as might be necessary for any of the
purposes of that Act;

[Ch. cxiv.] *Ministry of Health Provisional* [10 & 11 Geo. 5.]
Orders Confirmation (No. 7) Act, 1920.

A.D. 1920.

*Wakefield
Order.*

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order to repeal alter and amend the Local Acts in the manner hereinafter set forth :

38. & 39 Vict.
c. 55.

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Local Acts shall be repealed altered and amended so that the following provisions shall have effect viz :—

Purchase of
lands for
protection of
waterworks.

Art. I. The Corporation may for the purpose of protecting their waters and waterworks against pollution fouling contamination or injury and for purposes of their water undertaking other than the abstraction of water therefrom purchase by agreement and hold the lands and hereditaments described in the Schedule to this Order.

Limiting
powers to
abstract
water.

Art. II. The Corporation shall not construct any works for taking collecting or intercepting water from any lands acquired by them in pursuance of Article I. of this Order whether such water be on or beneath the surface of the ground and whether it be in a defined channel or otherwise unless the works are authorised by and the lands upon which the same are to be constructed are specified in an Act of Parliament or a Provisional Order confirmed by Parliament but nothing in this Article shall prevent the Corporation from constructing and laying down drains sewers water-courses and other works and conveniences necessary or proper for the purpose of intercepting and diverting all polluted fouled or contaminated waters arising or flowing upon such lands and naturally flowing to authorised waterworks of the Corporation and the waters tributary thereto in order to prevent the water which the Corporation are empowered to impound or take from being polluted fouled or contaminated Notice of intended application for any such Provisional Order shall be sent by registered post to the district councils of Rishworth Soyland Barkisland Sowerby Bridge Sowerby and the Halifax Rural District addressed to the respective offices of such councils.

Letting of
lands.

Art. III. The Corporation may let on lease or otherwise any lands or any interest in the lands acquired by them in pursuance of Article I. of this Order for such consideration and upon such terms and conditions as the Corporation may think fit but so that such letting shall be subject in all respects to the same conditions and restrictions as are imposed upon the Corporation by Article II. hereof.

For protec-
tion of
certain local
authorities.

Art. IV.—(1) If within five years from the passing of the Act confirming this Order any local authority or authorities in the drainage area of the River Ryburn gives notice in writing to the Corporation requiring them to sell any part of the lands described in the said

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxiv.]
Orders Confirmation (No. 7) Act, 1920.

schedule and coloured on the plan pink and pink with black hatchings the Corporation shall sell the land referred to in such notice to the Authority giving the notice. A.D. 1920.
Wakefield Order.

(2) The price to be paid for such land shall be such sum as shall be agreed upon or failing agreement as shall be determined by arbitration.

(3) If notice as aforesaid shall be given by more than one local authority respecting the same piece of land priority of purchase shall be given to the local authority showing the most urgent needs in relation to the water supply of their district and any dispute which may arise as to which of such authorities is entitled to such priority shall (in the absence of agreement) be determined by arbitration.

Art. V. The purposes of this Order shall be deemed to be purposes of the Act of 1916 for which the Corporation may with the consent of the Minister of Health borrow money under sub-section (2) of Section 46 of that Act. *Borrowing powers for purposes of Order.*

Art. VI. Paragraphs (a) to (i) of Section 22 of the Act of 1880 Section 14 of the Act of 1889 so far as it relates to the said paragraphs of Section 22 of the Act of 1880 and Section 9 of the Act of 1916 shall be repealed as from the date of the acquisition by the Corporation of the lands and hereditaments described in the Schedule to this Order. *Repeal.*

Art. VII. This Order may be cited as the Wakefield Order 1920. *Short title.*

The SCHEDULE above referred to.

All those several pieces of land situate within the Rishworth Urban District and respectively containing by admeasurement One hundred and eighty acres or thereabouts One hundred and ninety-two acres or thereabouts Thirteen acres or thereabouts Seven hundred and ninety-four acres or thereabouts and One hundred and sixty-three acres or thereabouts which said pieces of land are delineated and respectively coloured blue with brown hatchings blue with green hatchings blue with red hatchings pink and pink with black hatchings on two plans each of which is sealed with the official seal of the Minister of Health and marked "Plan referred to in the Wakefield Order 1920" and of which one is deposited in the office of the Minister of Health and the other shall be deposited by the Town Clerk in his

[Ch. cxiv.] *Ministry of Health Provisional* [10 & 11 Geo. 5.]
Orders Confirmation (No. 7) Act, 1920.

A.D. 1920. office within fourteen days from the date of this Order Together with
Wakefield all the manorial and other rights and interests of the Lord of the
Order. Manor of Rishworth over and in the said pieces of land.

Given under the Official Seal of the Minister of Health this
 Eighteenth day of May One thousand nine hundred and
 twenty.

(L.S.)

F. J. WILLIS

Assistant Secretary Ministry of Health.

BOROUGH OF WIDNES.

Widnes
Order.

Provisional Order for partially repealing and altering
the Widnes Corporation Act 1908.

To the Mayor Aldermen and Burgesses of the Borough of
 Widnes;—

And to all others whom it may concern.

8 Edw. 7.
 c. lxxxvi.

WHEREAS the Borough of Widnes (hereinafter referred to as "the
 Borough") is an Urban District of which the Mayor Aldermen and
 Burgesses acting by the Council (hereinafter referred to as "the
 Corporation") are the Urban District Council and the local authority
 within the meaning of the Public Health Act 1875 and there are in
 force in the Borough the provisions of the Widnes Corporation Act
 1908 (hereinafter referred to as "the Local Act");

And whereas by Sections 92 and 93 of the Local Act provision
 was made for the making assessing and levying of any general district
 rate in the Borough in the same manner as a borough rate the recovery
 and enforcement of the poor rate within the Borough and the rating
 of the owners of property instead of the occupiers in certain cases;

And whereas the Corporation have made application to the Minister
 of Health for the issue of a Provisional Order to partially repeal alter
 or amend the Local Act in the manner hereinafter set forth:

38 & 39 Vict.
 c. 55.

Now therefore the Minister of Health in pursuance of the powers
 given to him by Section 303 of the Public Health Act 1875 and of
 all other powers enabling him in that behalf hereby orders that from
 and after the date of the Act of Parliament confirming this Order the
 Local Act shall be partially repealed and altered so that the following
 provisions shall take effect that is to say:—

Date of ope-
 ration of this
 Order.

Art. I. This Order shall come into operation from and after the
 Thirty-first day of March One thousand nine hundred and twenty-one

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxiv.]
Orders Confirmation (No. 7) Act, 1920.

and throughout this Order any reference to the Borough shall mean the Borough of Widnes as constituted at that date. A.D. 1920.

*Widnes
Order.*

Art. II.—(1) Section 92 of the Local Act shall be repealed except so far as the same may have been acted upon.

Repeal and
alteration of
certain pro-
visions of
Local Act.

(2) Section 93 of the Local Act shall be altered and shall read as follows:—

“ 93. In the application to the Borough of Sections 3 and 4
 “ of the Poor Rate Assessment and Collection Act 1869 those
 “ Sections shall be construed and have effect in relation to the
 “ Poor Rate (including the Borough Rate) as if the Corporation
 “ were substituted for the Vestry and as if the limit of rateable
 “ value mentioned in the said Section 3 were twelve pounds
 “ instead of eight pounds.”

Art. III.—(1) All expenses of the Corporation which if this Order had not been made would have been payable out of the district fund and general district rate shall be charged on and defrayed out of the borough fund and the borough rate and in any case for which no specific provision is made in this Order any reference to the district fund or general district rate in any Local Act or Provisional Order in force in the Borough shall be deemed to be a reference to the borough fund or borough rate.

Abolition of
general dis-
trict rate in
Borough.

(2) The district fund account shall be closed and any balance which on the date on which this Order comes into operation is standing to the credit or to the debit of the said account shall from and after that date be transferred to the credit or the debit (as the case may be) of the borough fund and any moneys owing to the Corporation in respect of or in connexion with the general district rate shall notwithstanding the provisions of this Order continue to be payable and recoverable as if this Order had not been made and when received by the Corporation shall be carried to the credit of the borough fund.

Art. IV. The following provisions shall have effect with respect to borough rates to be made and levied in the Borough that is to say:—

Assessment
of certain
properties
to borough
rate.

(1) The owner of any tithes or of any tithe commutation rent-charge and the occupier of any land used as arable meadow or pasture ground only or as woodlands market gardens or nursery grounds and the occupier of any land covered with water or used only as a canal or towing path for the same or as a railway constructed under the powers of any Act of Parliament for public conveyance shall (save and except in the cases and to the extent to which the provisions of subdivision (2) of this Article apply) be assessed to the

[Ch. cxiv.] *Ministry of Health Provisional* [10 & 11 GEO. 5.]
Orders Confirmation (No. 7) Act, 1920.

A.D. 1920.

*Widnes
Order.*

borough rate in respect of such hereditaments in the proportion of fifty-five per centum of the net annual value thereof:

Provided that during the continuance of differential rating in any area forming part of the Borough in pursuance of any Provisional Order confirmed during the present Session of Parliament the occupier of any land used as a railway constructed under the powers of any Act of Parliament for public conveyance situate in any area entitled to the benefit of such differential rating shall be assessed to the borough rate in respect of such land in the proportion of sixty-three per centum of the net annual value thereof:

59 & 60 Vict.
c. 16.

(2) The occupier of any agricultural land to which Section 1 of the Agricultural Rates Act 1896 would otherwise apply shall during the continuance of that Act be assessed to the borough rate in respect of such land in the proportion of thirty-five per centum of the net annual value thereof.

Contribu-
tions to
borough rate.
45 & 46 Vict.
c. 50.

Art. V. Section 146 of the Municipal Corporations Act 1882 shall with the necessary modifications apply and have effect in relation to the borough rate as if the Township of Widnes were a parish partly in and partly out of the Borough.

Application of
Order to Sec-
tion 133 of
Lands Clauses
Consolidation
Act 1845.
8 & 9 Vict. c. 18.

Art. VI. For the purposes of Section 133 of the Lands Clauses Consolidation Act 1845 the borough rate for any one year levied in the Township of Widnes shall to the extent of three shillings in the pound be deemed to be poor's rate within the meaning of that section.

Form of rate
&c. to be pre-
scribed by
Minister of
Health.

Art. VII. The borough rate and the demand note and any other necessary documents to be used for the purposes of or in connection with the borough rate shall be in such form as the Minister of Health may from time to time prescribe.

Saving for
operation of
Agricultural
Rates Act 1896.

Art. VIII. Nothing herein contained shall in any way affect the operation of the Agricultural Rates Act 1896 save as in this Order expressly provided.

Short title.

Art. IX. This Order may be cited as the Widnes Order 1920.

Given under the Official Seal of the Minister of Health this
Nineteenth day of May One thousand nine hundred and
twenty.

(L.S.)

F. J. WILLIS

Assistant Secretary Ministry of Health.

THE SECOND SCHEDULE.

A.D. 1920.

BOROUGH OF DUNHEVED OTHERWISE LAUNCESTON.

*Provisional Order for repealing the Local Act 3 Vict.
Cap LXXV. and altering the Local Government Board's
Provisional Orders Confirmation (No. 14) Act 1889.*

*Launceston
Order.*

To the Mayor Aldermen and Burgesses of the Borough of
Dunheved otherwise Launceston; —
And to all others whom it may concern.

WHEREAS the Borough of Dunheved otherwise Launceston (herein-
after referred to as "the Borough") is an Urban District of which
the Mayor Aldermen and Burgesses acting by the Council (hereinafter
referred to as "the Corporation") are the Urban District Council and
the local authority within the meaning of the Public Health Act
1875;

And whereas the unrepealed provisions of a Local Act passed
in the third year of the reign of Her late Majesty Queen Victoria and
intituled "An Act for regulating the markets and for erecting a
market house in the Town of Launceston in the County of Cornwall" ^{3 Vict.} c. lxxv.
(hereinafter referred to as "the Local Act") are in force in the
Borough;

And whereas by the Local Act the Corporation were empowered
to carry the Local Act into execution within certain parts of the
Borough (hereinafter referred to as "the market limits") and not
elsewhere and to build and provide within the market limits and to
maintain and improve a proper market place or market places and
market house or market houses and in pursuance of the Local Act
the Corporation have provided market places and market houses
and carry on a market undertaking (hereinafter referred to as "the
Borough markets");

And whereas by certain provisions of the Local Act the Corpora-
tion were authorised for the purposes of the Borough markets to
borrow money by debenture bonds charged upon the market tolls or
on mortgage of their corporate lands or some of them;

And whereas in respect of the moneys borrowed by the Corpora-
tion for the purposes of the Borough markets there remains outstanding
the sum of six thousand pounds (hereinafter referred to as "the
existing debt") the repayment of which is secured by certain

[Ch. cxiv.] *Ministry of Health Provisional* [10 & 11 GEO. 5.]
Orders Confirmation (No. 7) Act, 1920.

A.D. 1920. debenture bonds (hereinafter referred to as "the debenture bonds")
Launceston charged upon the market tolls and held by certain bondholders
Order. (hereinafter referred to as "the bondholders") and the names of the
bondholders the amount of the debenture bonds respectively held by
them and the rate of interest per cent. payable by the Corporation
in respect thereof are set forth in columns 1 2 and 3 respectively
of the Schedule to this Order;

And whereas by indenture made in or about the year One
thousand eight hundred and forty-two between the Corporation of
the one part William Hughes of the second part and three of the Lords
Commissioners of Her late Majesty's Treasury of the third part certain
properties of the Corporation are mortgaged or equitably charged to
the said William Hughes or others therein mentioned as additional
security for the repayment of the debenture bonds;

52 & 53 Vict. And whereas by the Borough of Launceston Order 1889 (being a
c. clxxii. Provisional Order made by the Local Government Board under Section 52
of the Local Government Act 1888) which was confirmed by the Local
Government Board's Provisional Orders Confirmation (No. 14) Act 1889
(which Order and Act are hereinafter respectively referred to as "the
Order of 1889" and "the Confirming Act of 1889") the said Borough
was extended and by Article XII. of the Order of 1889 it was provided
that all the property powers and duties vested in or attached to the
Corporation for the benefit of the existing Borough should be vested
in or attached to them for the Borough as extended except the
property powers and duties vested in or attached to them under the
Local Act but that the property powers and duties under or by virtue
of the Local Act should be vested in held by and attach to the
Corporation subject to the provisions of the Local Act and all liabilities
incurred or to be incurred by the Corporation under the Local Act
should be defrayed in accordance with those provisions Provided that
nothing therein contained should prevent the proceeds arising from
the enfranchisement of copyholds of the Manor of Launceston and
from the sales of the reversions of long leaseholds held of the Cor-
poration being applied in accordance with an arrangement approved
by the Treasury towards the redemption of the debenture bonds;

And whereas the Corporation have made application to the Minister
of Health for the issue of a Provisional Order to repeal alter or amend
the Local Act in the manner hereinafter set forth:

38 & 39 Vict. Now therefore the Minister of Health in pursuance of the powers
c. 55. given to him by Sections 297 and 303 of the Public Health Act 1875
51 & 52 Vict. and Section 59 of the Local Government Act 1888 and of all other
c. 41. powers enabling him in that behalf hereby orders that from and after
the date of the Act of Parliament confirming this Order (hereinafter

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxiv.]
Orders Confirmation (No. 7) Act, 1920.

A.D. 1920.

referred to as "the commencement of this Order") the following provisions shall take effect that is to say:—

Launceston
Order.

Art. I. The Local Act shall be wholly repealed.

Repeal of
Local Act.
Markets.

Art. II.—(1) Notwithstanding anything in Article XII. of the Order of 1889 the Borough markets shall subject to the provisions of this Order be held by the Corporation for the benefit of the whole of the Borough.

(2) Subject to the provisions of this Order the Borough markets (including all market houses market places weighing houses weighing places and other conveniences for holding the Borough markets) shall be and be deemed to have been markets held established or provided under the Public Health Act 1875 and the provisions of that Act with respect to markets and slaughterhouses and the enactments incorporated therewith and thereby rendered applicable to markets to be established or regulated in pursuance of the said Act (including the provisions and enactments relating to byelaws with respect to any market belonging to an urban authority) shall extend and apply to the Borough markets and shall have effect as if in relation to the Borough markets the Corporation were and had been empowered to do the things or any of the things mentioned in Section 166 of that Act.

Art. III.—(1) The tolls stallages and rents which the Corporation are now empowered to demand and take in respect of marketable commodities sold in the Borough markets shall remain in force and may be demanded and taken in respect of any market to which this Order applies until the same are changed in pursuance of this Order.

Tolls stall-
ages and
rents.

(2) For the purpose of enabling the Corporation to change the said tolls stallages and rents the provisions and enactments applied by this Order shall apply and have effect as if the said tolls stallages and rents were subject to change in pursuance of the said provisions and enactments.

Art. IV. The Corporation with the sanction of the Minister of Health may demolish any of the buildings forming part of the Borough markets and may appropriate to some purpose other than markets the site of any buildings so demolished or any land now used for market purposes.

Authorising
Corporation
to demolish
market build-
ings and appro-
priate site to
other purposes.

Art. V.—(1) Any debenture bond or other security given by the Corporation in respect of the existing debt may with the consent in writing of the person entitled to the benefit of the bond or other security be charged solely upon the district fund and general district rate of the Borough instead of upon the market tolls rents and stallages and any other property belonging to the Corporation and when such consent shall have been obtained the debenture bond or other security

Charges of
existing debt.

[Ch. cxiv.] *Ministry of Health Provisional* [10 & 11 GEO. 5.]
Orders Confirmation (No. 7) Act, 1920.

A.D. 1920. shall be read and have effect accordingly but subject to this provision
Launceston Nothing in this Order contained shall prejudicially affect any debenture
Order. bond or other security which may have been granted by the Corporation in respect of the existing debt or the rights and powers of the persons entitled under any such debenture bond or other security to enforce or transfer the same and where for any such purpose it is necessary to continue the exercise of a power which would have existed but for this Order the power may continue to be exercised as if this Order had not been made.

Saving for
rights of
bondholders
&c.

(2) Upon the consent in writing of all the persons entitled to the benefit of the said bonds or other securities being obtained to such substitution of security as aforesaid the property comprised in the said indenture made in or about the year One thousand eight hundred and forty-two shall by virtue of this Order vest in the Corporation freed and absolutely discharged from all moneys secured by such indenture.

Borrowing
powers for
markets and
for repay-
ment of
existing debt.

Art. VI. The Corporation may with the sanction of the Minister of Health and subject to the provisions of this Order borrow upon the security of the district fund and general district rate of the Borough such sums as may from time to time be required for the purposes of the Borough markets and of the repayment of the existing debt or any part thereof.

Local Loans
Act and cer-
tain provi-
sions of Pub-
lic Health
Act made
applicable.

Art. VII. For the purpose of raising money in the exercise of the powers of borrowing conferred by this Order the provisions of the Local Loans Act 1875 shall be available to the Corporation and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed on mortgage under this Order.

Period for
repayment of
borrowed
moneys.

Art. VIII. The existing debt and any moneys borrowed for the repayment of the existing debt or any part thereof shall be repaid within thirty years from the commencement of this Order and any moneys borrowed otherwise under Article VI. of this Order shall be repaid within such period not exceeding sixty years from the date of borrowing as the Corporation with the sanction of the Minister of Health in each case determine and the said respective periods are hereinafter referred to as "the prescribed period" and shall with reference to the repayment of moneys borrowed under the said Article VI. be the prescribed period for the purposes of this Order and of the Local Loans Act 1875.

Mode of
repayment.

Art. IX.—(1) The Corporation shall repay the existing debt and the moneys borrowed under this Order (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them.

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxiv.]
Orders Confirmation (No. 7) Act, 1920.

(2) Subject to the provisions of Article X. of this Order if the Corporation determine to repay by means of a sinking fund the existing debt or any moneys borrowed under this Order the sinking fund shall be formed and maintained either—

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Order.

Formation
 maintenance
 and applica-
 tion of sink-
 ing fund.

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a non-accumulating sinking fund; or

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds ten shillings per centum per annum or such other rate as the Minister of Health may from time to time approve will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called an accumulating sinking fund.

(3) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the Corporation and the Corporation shall be at liberty from time to time to vary and transpose the investments.

(4) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(5) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(6)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on

[Ch. cxiv.] *Ministry of Health Provisional* [10 & 11 GEO. 5.]
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Launceston shall be made good by the Corporation:
Order.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards those equal annual payments.

(7) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Corporation in addition to the payments provided for by this Order.

Increase
reduction or
discontinu-
ance of pay-
ments to
sinking fund.

Art. X.—(1) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Minister of Health that any such increase is necessary the Corporation shall increase the payments to such extent as the Minister may direct.

(2) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3) If in the opinion of the Minister of Health the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Minister approves.

(4) If in the opinion of the Minister of Health the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be sufficient to repay the loan in respect of which it is formed within the prescribed period the Corporation may with the consent of the Minister discontinue the equal annual payments to the sinking fund until the Minister otherwise directs.

Surplus of
sinking fund.

(5) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Minister of Health may determine.

[10.&11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxiv.]
Orders Confirmation (No. 7) Act, 1920.

Art. XI.—(1) The Corporation shall have power—

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(a) to borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid ; or

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Power to re-borrow.

(b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this Article shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this Article.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments ; or

(b) by means of a sinking fund ; or

(c) out of moneys derived from the sale of land ; or

(d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Art. XII. All moneys from time to time borrowed under this Order shall be applied by the Corporation only for the purposes for which the same are respectively authorised to be borrowed excepting that moneys which may have been borrowed in excess of the amount required shall be applied in such manner as the Corporation with the approval of the Minister of Health determine.

Application of borrowed moneys.

Art. XIII.—(1) Subject to the provisions of this Article any mortgagee of the Corporation in respect of a mortgage created under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver.

Receiver.

(2) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him :

[Ch. cxiv.] *Ministry of Health Provisional [10 & 11 GEO. 5.]
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A.D. 1920.

*Launceston
Order.*

Return as to
provision for
repayment
of debt.

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to the applicants collectively be not less than five hundred pounds in the whole.

Art. XIV.—(1) The town clerk shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Order or in respect of any money raised thereunder and at any other time when the Minister of Health may require such a return to be made transmit to the Minister a return in such form as may from time to time be prescribed by the Minister and if required by the Minister verified by statutory declaration of the town clerk showing for the year next preceding the making of the return or for such other period as the Minister may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make the return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of that penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(2) If it appears to the Minister of Health by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether the instalment or annual payment or sum is required by this Order or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than an authorised purpose the Minister may by order direct that the sum in that order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as is mentioned in the said order and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

Short title.

Art. XV. This Order may be cited as the Launceston Order 1920.

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxiv.]
Orders Confirmation (No. 7) Act, 1920.

The SCHEDULE above referred to.

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1.	2.	3.
Bondholders.	Amount of Debenture Bonds.	Rate of Interest per cent.
The Trustees of the Loyal Cary Lodge Torquay	£ 700	3
The Trustees of the Loyal Pride of Torquay Lodge Torquay.	100	3
The Trustees of the Court Eliot Ancient Order of Foresters.	900	3
W. F. Thompson W. H. Symons and C. H. Peter Trustees for the Council of the Borough.	4300	3 as to part. 3½ as to part. 4 as to part.
Total	£6000	—

Given under the Official Seal of the Minister of Health this
Nineteenth day of May One thousand nine hundred and
twenty.

(L.S.)

F. J. WILLIS

Assistant Secretary Ministry of Health.

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FOR

WILLIAM RICHARD CODLING, Esq., C.B.E., M.V.O., the King's Printer of Acts of Parliament.

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